

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD**R/MISC. CIVIL APPLICATION NO. 47 of 2021****In R/SPECIAL CIVIL APPLICATION NO. 17182 of 2016**

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AIR LIQUIDE INDIA HOLDING PRIVATE LIMITED**Versus****H H KHOJA, COLLECTOR OF ELECTRICITY DUTY**

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Appearance:

NANAVATI ASSOCIATES(1375) for the Applicant(s) No. 1

MR DIPAK R DAVE(1232) for the Opponent(s) No. 2

NOTICE SERVED(4) for the Opponent(s) No. 1

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CORAM: HONOURABLE MR. JUSTICE A.J.DESAI**and****HONOURABLE DR. JUSTICE A. P. THAKER****Date : 16/07/2021****ORAL ORDER****(PER : HONOURABLE MR. JUSTICE A.J.DESAI)**

1. Ms. Vrunda Shah, learned AGP, states that the judgement and order dated 10.01.2020 passed by the learned Single Judge and Special Civil Application No. 17182 of 2016 is under challenge by way of filing appeal under Clause – 15 of the Letters Patent Appeal. The Appeal was lastly listed on 07.04.2021. An application for early hearing of the appeal was moved requesting for stay of operation of the judgement and order passed by the learned Single Judge. Request for time is made by the learned AGP.
2. Mr. Kunal Vyas, learned advocate appearing for Nanavati Associates appearing for the applicant, has opposed such request.

3. Considering the submission made by the learned advocates appearing for the respective parties and the fact that the appeal is pending for hearing, the following order is passed.
4. The respondent – State Authority is hereby directed to deposit the amount before the Registry within a period of four weeks. The amount shall be paid by an A/c Payee cheque to the applicant after a period of eight weeks herein after in absence of any stay order granted by the Division Bench of this Court in Letters Patent Appeal.
5. It would be open for the applicant to file a fresh application, in case of difficulty.
6. Non-compliance of the order passed by the learned Single Judge shall be viewed very seriously.
7. With the above direction, present application stands disposed of.

(A.J.DESAI, J)

(DR. A. P. THAKER, J)

F.S. KAZI